CITY OF GROVER BEACH
FULL TEXT OF MEASURE F-26

INITIATIVE MEASURE TO BE SUBMITTED DIRECTLY TO THE VOTERS ADOPTING AN ORDINANCE TO LIMIT BUILDING HEIGHTS AND ESTABLISH A MINIMUM THIRTY-THREE PERCENT (33%) COMMERCIAL COMPONENT IN MIXED-USE DEVELOPMENT

THE PEOPLE OF THE CITY OF GROVER BEACH DO ORDAIN AS FOLLOWS:

SECTION 1. Building and Structure Maximum Height – Commercial Zoning Districts – Building and structure heights in all commercial zoning districts shall not exceed three (3) stories and forty (40) feet in height. Industrial Zoning Districts – buildings and structures in all industrial zoning districts shall not exceed thirty-three (33) feet in height. Building and Structure Heights in all zoning districts shall be measured from the average natural grade to the highest point of the building or structure including any appurtenances. Appurtenances include, but are not limited to, architectural features, roof mounted equipment, elevators, stairwell towers, chimneys, parapets, or any other rooftop additions, structures, or furnishings.

SECTION 2. Mixed Use – A minimum of thirty-three percent (33%) of a mixed-use building shall be dedicated to commercial or retail use. The front of buildings and structures shall be oriented to the primary street of the project and contain only commercial uses on the ground floor fronting the primary street, except that accessory ground floor access to upper floors shall be allowed in addition to the minimum thirty-three percent (33%) ground floor commercial use. Minimum ground floor ceiling heights shall be reduced to ten (10) feet.

SECTION 3. These regulations shall be added to the City's Objective Design Standards. The City shall update and amend all applicable sections of the City of Grover Beach Municipal Code Article IX – Planning & Zoning Regulations and any related regulations to reflect these height limits, definition of appurtenances, and percentages.

SECTION 4. This Initiative shall be binding and effective as of the earliest date allowed by law (the "Effective Date"). The Community Development Department shall update all City of Grover Beach zoning information and zoning maps to reflect the above zoning requirements within ninety (90) days of the Effective Date. All new decisions or changes, regardless of the original date of approval, shall comply with this measure.

SECTION 5. If any provision of this Initiative Ordinance conflicts with other provisions contained in the Grover Beach Municipal Code, the provisions of this ordinance shall supersede any conflicting provision.

SECTION 6. Nothing in this ordinance shall be amended or repealed except by a majority vote of the people of Grover Beach. The purpose of this measure is to ask registered voters in the City of Grover Beach if they wish to adopt an ordinance to limit building height within the commercial and industrial zones, and to establish a minimum percentage for designated commercial use within mixed-use developments.

SECTION 7. If a majority of qualified electors voting on such measure shall vote in favor of City of Grover Beach Initiative Measure "F-26", it shall be deemed ratified and shall read as provided above.

IMPARTIAL ANALYSIS OF MEASURE F-26

A Citizen's Initiative Measure to Limit Building Heights and to Establish a Minimum Commercial Component of Thirty-Three Percent (33%) in Mixed-Use Developments

The purpose of this measure is to ask registered voters in the City of Grover Beach if they wish to adopt an ordinance to limit building height within the commercial and industrial zones, and to establish a minimum percentage for designated commercial use within mixed-use developments.

Currently, the Development Code, Article IX of the City's Municipal Code, allows for building heights up to fifty-five feet (55') in certain commercial zones, and building heights up to forty feet (40') in industrial zones. The measure would limit building heights in Commercial Zoning Districts to three (3) stories and no more than forty feet (40') in height, and limit buildings within the Industrial Zoning Districts to thirty-three feet (33') in height. The measure would additionally change how building height is measured. The existing building height is measured from the average natural grade to the highest point of the building, excluding any appurtenances. The measure will measure building height from the average natural grade to the highest point of the building, including any appurtenances.

For mixed-use developments, the existing Development Code does not currently prescribe a minimum percentage for the commercial component of mixed-use developments. The measure would additionally require a minimum of thirty-three percent (33%) of a mixed-use building to be dedicated to commercial uses and require such commercial uses on the ground floor frontage on the primary street.

If passed, this measure would be added to the City's Objective Design Standards and amend applicable sections of the City of Grover Beach Municipal Code. The ordinance would become effective at the earliest time permitted by law and require the Community Development Department to update the Development Code within ninety (90) days of it becoming effective. Only proposed development applications received after the ordinance effective date would be required to comply with the Measure.

Successful passage of this measure would effectively void existing Grover Beach Municipal Code sections in conflict and necessitate revaluation of the City's Housing Element. Under California State law (Gov. Code, § 65583.2), local agencies are required to include an inventory of land suitable for residential development within the agency's Housing Element to address the agency's Regional Housing Needs Allocation ("RHNA"). The City's 2020-2028 Housing Element considered existing allowable building height limits in determining and demonstrating how the City will accommodate its allocated number of housing units pursuant to the San Luis Obispo Council of Governments 2019 RHNA Plan. By limiting building heights, the City may be required to accommodate housing units in alternate locations.

s/ Jennifer Thompson, City Attorney

ARGUMENT IN FAVOR OF MEASURE F-26

The Citizens Measure will restore and preserve Grover Beach's small coastal-town character. It affirms a commitment to responsible growth while protecting the natural beauty and coastal feel in our community. If passed, modifications to this measure can only be accomplished through a vote of the people.

Measure F-26 will limit commercial building to 40 feet and industrial buildings to 33 feet; restoring limits to the 2022 building code. The Measure also establishes in mixed use buildings(commercial/residential), that 33% of the structure must be assigned to commercial use. Commercial use generates more city revenue through both property taxes and sales taxes.

Currently, Grover Beach will exceed the State goals for housing in this development cycle, which ends in 2027. No State goals exist for the next eight- year development cycle. This Measure cannot limit low-income housing, nor would it affect current residential neighborhoods.

With 62 acres of vacant land available in Grover Beach, future construction can be accomplished with the proposed height limits, while remaining compliant with State requirements. A vote in favor of this Measure will help preserve our historical beach community.

s/ Michael R. Wilson
Proponent

s/ Ron P. Arnoldsen
Proponent & Former Mayor

s/ Donna M. De La Rosa
Proponent & former Parks & Rec Commissioner

s/ Kelvin V. Coveduck
Initiative Organizer & Grover Beach Citizen

ARGUMENT AGAINST MEASURE F-26

Voting YES puts the City at risk of being fined and sued by the State of California to enforce compliance with state housing laws. Decertification of the City's Housing Element would result in losing eligibility for millions in state and federal grants that support infrastructure improvements, affordable housing, and local services for our residents.

The practical result of this Measure is less local control. The Measure threatens Grover Beach's future by potentially letting Sacramento and developers dictate the types of housing projects that get built here.

Instead of protecting local control, this puts Sacramento and the courts in the driver[1]s seat. Recently, a developer proposed an eight-story building next to the Santa Barbara Mission using the Builder's Remedy which limits the local government's ability to deny or significantly reduce projects.

A YES vote means that the City will need to relocate taller buildings outside of present commercial and industrial zones, potentially into the middle of residential neighborhoods. If passed, new housing mandated by the state will have nowhere else to go.

Up to 44% of residential units may need to be rezoned across 136 acres of presently low-density areas of the City.

A YES vote could burden the City with even denser developments mandated by the State with Builder's Remedy with much larger buildings forced upon local cities like Carpinteria and Santa Barbara.

The better approach to the community's concerns is already underway: the City Council has formed an ad hoc committee to explore sensible building controls, including height limits, which meet community expectations.

The City can retain local control without threatening its compliance with State housing law and openingthe City to Builder's Remedy projects.

Protect local control.

Vote NO on Measure F-26.

Ligia Zavala

Krista Jeffries

Michael Teeling

REBUTTAL TO THE ARGUMENT IN FAVOR OF MEASURE F-26

Rebuttal to YES Vote

The proponents of this Measure should be careful what they wish for. Its passage will lead to legal uncertainty and a rash of unintended consequences.

The Measure directly threatens the City's compliance with state law, specifically Government Code sections 66300 and 65863 which prohibit cities from reducing residential density and require that there is no net loss of housing capacity.

The California Department of Housing and Community Development has warned that if the Measure passes without upzoning elsewhere, it will be deemed void under state law, meaning that voters may pass a measure with no legal effect at all. The Measure will also make Grover Beach less affordable, reduce housing options for renters, and put our City at risk of costly state penalties.

In other words, the Measure would force the rezoning of single-family neighborhoods and could cost taxpayers up to $1 million in new studies. Critically, if the City loses control over its zoning authority, developers could build even bigger projects with no local say. We could also lose millions in state funding for parks, infrastructure, and essential services.

The proponents claim that "62 acres of vacant land" and current compliance with state housing goals mean this Measure is safe. But state housing mandates do not end in 2027..

Simply put, a YES vote will potentially lead to more lawsuits, more ballot fights, and deeper community division.

Vote NO on Measure F-26 to keep Grover Beach in control.

The undersigned author of the rebuttal argument against F-26 at the election to be held on November 3, 2026, hereby states that such argument is true and correct to the best of their knowledge and belief.

s/ Michael Teeling

s/ Ligia Zavala

REBUTTAL TO THE ARGUMENT AGAINST MEASURE F-26

The City will retain compliance with the State Housing Element even with a yes vote on F-26. A Housing and Community Development representative stated in February 2026 that the Citizens Initiative has no clear violation or potential violation of any law.

Recently, our planning commission adopted a resolution requested by the State which would relax the rules for building ADUs. In addition, legislation was passed in 2022 allowing properties in R-1 zones to split their lots into 2 primary residential units. Consequently, we are not at risk of falling under more control of the State or courts. No further evaluation by the State for building compliance will occur until 2032. Grover Beach has sufficient (32) vacant land sites for possible development.

This measure was created by citizens like you, who believe in our community and direct democracy. It was created to reset the building standards we all believed we were under, but were changed during the pandemic by the City Council in 2022. This measure was created to give you, the true stakeholder of our community, control over the direction Grover Beach will follow. A Yes vote lowers height limits for commercial/industrial and mixed-use buildings and returns them to 2022 building standards. Because, the city has the land and means to stay compliant with State law, it will continue to be unlawful to relocate taller buildings in residential neighborhoods.

Save Grover Beach Now

No More Tall Buildings

Vote Yes on Measure F-26

s/ Michael Wilson
Proponent

s/ Ronald P. Arnoldsen
Proponent & Former Mayor

s/ Donna M. De La Rosa
Proponent & former Parks & Rec Commissioner

s/ Kelvin V. Coveduck
Initiative Organizer & Grover Beach Citizen